

02:00 PM **LINE 3**

22-CIV-05115

MARIA TORRECILLA-FLORES VS. STATE OF CALIFORNIA

MARIA TORRECILLA-FLORES
STATE OF CALIFORNIA (CALTRANS.)

JACQUELINE K. OH
JOSE GONZALEZ

Motion for Summary Judgment and Alternative Motion for Summary Adjudication

TENTATIVE RULING:

Defendant State of California's Motion for Summary Judgment or, in the Alternative, Summary Adjudication is **DENIED**.

Plaintiff Maria Torrecilla-Flores' Objections to Evidence are **SUSTAINED** to Nos. 5–9 and otherwise are **OVERRULED**.

Defendant State of California's Evidentiary Objections are **SUSTAINED** as to Nos. 1–2, 4–8, 10–16, 18 and otherwise are **OVERRULED**.

Defendant State of California (Caltrans) seeks summary judgment on plaintiff Maria Torrecilla-Flores's First Amended Complaint (FAC), which asserts a single cause of action for dangerous condition of public property, based on a December 13, 2021 incident in which Torrecilla-Flores was injured by a falling tree while traveling south on Interstate 280. (April 5, 2023 FAC, ¶¶ 13–40.)

The elements of a cause of action against a public entity for a dangerous condition are, *inter alia*, (1) the property was in a dangerous condition at the time of the injury and (2) the condition was either (a) created by the negligent or wrongful act of the entity's employee in the scope of employment or (b) extant for sufficient time prior to the injury for the entity to have taken protective measures and the entity had actual or constructive notice of the condition. (Gov. Code, § 835; *Cordova v. City of Los Angeles* (2015) 61 Cal.4th 1099, 1104.) Caltrans contends Torrecilla-Flores cannot establish either of these elements.

While Caltrans also seeks summary adjudication of multiple issues in the alternative, each of the identified issues are merely elements of the single cause of action or the cause of action itself. (See Feb. 6, 2026 Motion for Summary Judgment, at p. 2.) Because summary adjudication may only be granted if it completely disposes of a cause of action (Code Civ. Proc., § 437c, subd. (f)(1)), summary adjudication here may only be granted or denied in line with summary judgment.

A. Legal Standard on Summary Judgment

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ.

Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party’s ultimate burden of persuasion that there are no issues of triable fact never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied — despite deficiencies in the opposition — if the burden has not been carried. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See’s Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

B. Caltrans Has Not Shown that Torrecilla-Flores Cannot Show that a Dangerous Condition Existed

A “[d]angerous condition” is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830, subd. (a).) “Whether the condition of property posed a substantial risk of injury to foreseeable users exercising due care is an objective standard and is measured by the risk posed to an ordinary foreseeable user.” (*Huffman v. City of Poway* (2000) 84 Cal.App.4th 975, 992.) It is generally a question of fact. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 148.) Only if “reasonable minds can come to only one conclusion” may the question be decided as a matter of law. (*Ibid.*)

To meet its initial burden, Caltrans presents the following evidence: there had been no incidents, complaints, or reports from public employees regarding the trees near the site of the fallen tree in Caltrans’s Bay Area Incident Response System for the preceding ten years up through ten minutes before the incident. (Feb. 6, 2026 Separate Statement [Deft. Sep. Stmt.], Nos. 1 [tree fell at 12:10 a.m.], 9–10; see Feb. 6, 2026 Compendium of Evidence [Deft. Evid.], exh. 2, ¶¶ 5–11.) There had been no Customer Service Requests submitted through Caltrans’s Customer Service Request online program regarding any trees at the subject site for the year of 2021. (Deft. Sep. Stmt., Nos. 11–12.) This includes the date of the incident, meaning no

Customer Service Request for the subject incident was received despite the fact a tree fell on plaintiff's vehicle that day. (Deft. Evid., exh. 3, ¶¶ 3–11; Deft. Sep. Stmt., No. 1.) There were no reports of other trees falling and causing accidents near the subject site on the Traffic Accident Surveillance and Analysis System or traffic investigations of tree-related accidents by Caltrans's Traffic Safety Division from 2013 through 2021. (Deft. Sep. Stmt., Nos. 14–16.)

Further, Mark Franklin, the employee responsible for overseeing landscaping and tree maintenance at the site had not received any complaints about motor vehicle accidents caused by trees from 2018 through February 2026. (Deft. Sep. Stmt., No. 19.) The evidence shows that Franklin never received complaints or reports of any kind — not just motor vehicle accidents — about the trees from his subordinates or the public, including the incident involving plaintiff's vehicle. (Deft. Evid., exh. 4, ¶ 8.) That there were no incident reports — including as to the incident at issue — does not demonstrate the reliability of the database, or the reporting system, such that the court can infer that arboreal hazards would be detected and reported on a reasonably regular basis. Indeed, as noted above, this evidence — in the form of declarations — must be strictly construed against Caltrans as the moving party.

Even assuming the mere absence of prior accidents caused by a condition of public property can establish a *prima facie* case that the condition was not dangerous for purposes of Government Code, section 835, the evidence presented here does not demonstrate that the condition of the tree was not dangerous. In many cases, accident history is highly relevant to whether a particular condition presents a substantial risk of injury. If the condition *had existed* for a period of time and no one had been hurt *by that condition* then it is reasonable to conclude that absent a change in the condition it was not dangerous. (See, e.g., *Sambrano v. City of San Diego* (2001) 94 Cal.App.4th 225, 243; *Callahan v. City and County of San Francisco* (1971) 15 Cal.App.3d 374, 379.)

In this case, however, the allegedly dangerous condition is that a particular tree fell on plaintiff's car, not that the collection of trees at the site was dangerous. (See FAC, ¶ 13.) One would hardly expect prior accidents: the tree should fall only once. That this tree or other trees near it had not fallen previously does not show that the tree that fell on plaintiff's car did not constitute a dangerous condition either long before the accident or shortly before the accident during the stormy conditions. (See Deft. Sep. Stmt., No. 5 [“raining” and “windy” at time of accident].)

Furthermore, to the extent any history is relevant, Caltrans's evidence of reports has important omissions in its coverage. Caltrans does not set forth in its separate statement or its evidence any facts demonstrating that, had any prior accidents occurred, they would have been included in one of the databases, such that a juror could find that the absence of a reported accident in these databases means that no prior accidents had happened. Caltrans cites to no other evidence in its memoranda on this point, and therefore has failed to carry its initial burden of presenting evidence establishing a *prima facie* case that a dangerous condition did not exist.

While Caltrans has not carried its burden as to the existence of a dangerous condition, it may still prevail by showing the absence of any triable issue of material fact as to both (1) that

Caltrans lacked actual or constructive notice of the dangerous condition and (2) that the condition was not created by the negligent or wrongful act of a Caltrans employee. Meanwhile, Torrecilla-Flores may prevail by establishing a triable issue as to either one of these issues.

C. Triable Issue as to Constructive Notice of Condition

A plaintiff may show a public entity had either actual notice or constructive notice of a dangerous condition. “To establish actual notice, ‘[t]here must be some evidence that the employees had knowledge of the particular dangerous condition in question’; ‘it is not enough to show that the [public entity’s] employees had a general knowledge’ that the condition can sometimes occur.” (*Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 519.) “To establish constructive notice, the plaintiff must prove ‘the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.’” (*Kabat v. Department of Transportation* (2024) 107 Cal.App.5th 651, 665, quoting Gov. Code, § 835.2, subd. (b).)

In addition to the previously discussed report history (see Deft. Sep. Stmt., Nos. 9–19), Caltrans offers the following evidence to show it did not have notice of the dangerous condition: Franklin, the tree maintenance supervisor, had not observed any “falling, leaning, breaking, overgrown, old, unstable, unhealthy, decaying, or dried out” trees at the subject site on the more than two hundred occasions he drove south along Interstate 280 from May 1 to December 12, 2021. (Deft. Sep. Stmt., No. 20.) Caltrans also points out that (not surprisingly given the circumstances) Torrecilla-Flores herself never placed Caltrans on notice of the tree before it fell on her. (*Id.*, at Nos. 31–32.)

Significantly, Franklin’s declaration only establishes that he had no personal knowledge of the allegedly dangerous condition. (See Deft. Evid., exh. 5, *passim*.) He states that he is “the Caltrans Maintenance Supervisor responsible for overseeing landscaping and tree and vegetation maintenance on and along I-280 within Daly City, California, including the sloped areas containing trees next to the travel lanes;” that he never personally noticed any hazardous trees at the site; and that no one underneath him reported anything to him; he does not state there were other Caltrans employees that also could have had personal knowledge or received reports. That is, even if Franklin did not have actual or constructive notice of any dangerous conditions at the site, his declaration does not show that Caltrans lacked actual or constructive notice through some other source.

The burden of proof at trial is nevertheless on Torrecilla-Flores to prove that knowledge. Caltrans offers Torrecilla-Flores’s responses to written discovery. When asked what facts support her contention that Caltrans had actual notice of the dangerous condition, Torrecilla-Flores essentially only provided a bare legal assertion that Caltrans had actual notice. (Deft. Sep. Stmt., No. 28.) This is sufficient to shift the burden to Torrecilla-Flores to produce evidence showing a triable issue of material fact. (See *Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1598 [“defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon”].)

When asked what facts support her contention that Caltrans had constructive notice of the dangerous condition, Torrecilla-Flores’ responded: “[The tree] was an overgrown, old, unhealthy, unstable, and/or otherwise hazardous tree located at or near the [subject site]. [The tree] was permitted to grow directly at the right shoulder of the [subject site] by [Caltrans]. ... The [the tree] had been hazardous for enough time before the incident that a reasonable inspection would have revealed the dangerous condition.” (Deft. Sep. Stmt., No. 29.) While essentially a recitation of her pleading’s allegations, they are still facts: the tree’s hazardousness would have been revealed by a reasonable inspection because the tree was unhealthy or unstable and adjacent to the shoulder. Caltrans cannot rely on this response to shift the burden on constructive notice.

Thus, the evidence discussed above must make out a prima facie case that the condition had either not “existed for such a period of time” or was not “of such an obvious nature that [Caltrans], in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov. Code, § 835.2, subd. (b).) In cases like this one, public entities may satisfy their burden by producing evidence showing the relatively hidden nature of the dangerousness the condition. (See, e.g., *Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 526 [prima facie case of lack of constructive notice made by testimony about “insignificant” less-than-two-inch divot]) or the absence of reports of the dangerous condition during reasonably adequate inspections (see, e.g., *Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 318–319 [evidence of work crews dispatched to area for repairs not reporting a downed street sign]; see also Gov. Code, § 835.2, subd. (b)(1) [relevant evidence includes whether “existence of the condition and its dangerous character would have been discovered by an inspection system that was reasonably adequate (considering the practicability and cost of inspection weighed against the likelihood and magnitude of the potential danger to which failure to inspect would give rise)”].)

Again, the absence of prior accidents Caltrans offers does not demonstrate the absence of triable issues of material fact, especially when the referenced databases fail to report at least one known significant incident (i.e., the accident here). In addition to the absence of reports, Franklin states he also never observed a hazardous tree while driving south along Interstate 280, where he “saw the trees that were next to the travel lanes hundreds of times ... for purposes of performing landscaping, tree or vegetation related maintenance or inspections, and generally as [he] drove through the area from one assignment to another.” (Deft. Evid., exh. 5, ¶ 9.) This statement does not demonstrate that all trees near the roadside that were at risk of falling would be detectable from a vehicle traveling at highway speeds or that this inspection was otherwise reasonably adequate in light of the potential danger, especially when the declaration is not precise about when these drive-by inspections occurred. (See *Stanford v. City of Ontario* (1972) 6 Cal.3d 870, 882–883 [period of notice may be of extremely short duration to support constructive notice in some cases].)

However, even were this evidence deemed to make out a prima facie case of the absence of constructive notice, Torrecilla-Flores shows a triable issue as to whether Caltrans should have discovered the tree’s risk of falling “in the exercise of due care.” (Gov. Code, § 835.2, subd. (b)(1).) She presents Franklin’s deposition testimony, which states — construed in favor of Torrecilla-Flores as required — that Franklin received no training from Caltrans regarding the

identification of hazardous trees apart from identifying those that are visibly dead. (June 9, 2026 Pltf. Sep. Stmt., No. 20; June 9, 2026 Declaration of Jacqueline K. Oh, exh. E [Franklin tr.], at p. 23:4–24.) Even then, he was not trained to identify all possible visual indicators of a dead tree. (Oh Decl., exh. E [Franking tr.], at p. 23:19–24.)

During his inspections, Frankling was not accompanied by an arborist, even during the once-yearly inspections, and he would only note those trees he could identify as “possibly ... dead or leaning extremely or that could cause a nuisance.” (Oh Decl., exh. E [Franklin tr.], at p. 24:13–21.) Despite Franklin’s professed inability to identify all potential hazards, Caltrans did not select a more qualified person to conduct the annual inspection prior to the accident. (*Id.*, at p. 28:6–18.) This went against Caltrans’s own policies regarding tree inspections. (*Id.*, at pp. 30:5–31:13, 33:24–34:25, 37:14–25; see also *id.*, at exh. F [“It is often difficult to detect conditions such as loss of root support, interior rotting and split limbs ... Consult your Tree Maintenance Supervisor”]; cf. exh. E [Franklin tr.], at p. 32:10–15 [no Tree Maintenance Supervisor for subject site in 2020–2021].)

Caltrans contends that the fact it may not have followed its own policies designed to protect against the type of accident that occurred here cannot, as a matter of law, be used at all in an action for dangerous condition of public policy, citing *Posey v. State of California* (1986) 180 Cal.App.3d 836 (*Posey*) and *Miller vs. Pacific Gas & Electric Co.* (2023) 97 Cal.App.5th 1161 (*Miller*). This contention is based on a misstatement of law. In *Posey*, the Court held that policies that are not formal regulations do not create *mandatory duties*, not that such policies were irrelevant or inadmissible to establish a duty of care. (*Posey, supra*, at pp. 847–848.) The plaintiff was not asserting a cause of action under Government Code, section 835 and alleging a dangerous condition should have been discovered by a public entity exercising due care but attempting to hold a public liable under section 815.6 for failing to discharge a duty “imposed by an enactment.” (Gov. Code, § 815.6; see *Posey, supra*, at pp. 847–848.) Even where a public entity is not subject to an express mandatory duty does not mean that everything the entity does is reasonable. In *Miller*, the plaintiff was also not using government policies to establish the duty of care. (See *Miller, supra*, at pp. 1167–1168.) Instead, the plaintiff was attempting to establish that a sidewalk defect was not trivial, the fact that the defendant municipality had a policy of repairing small cracks did not mean that every such crack created a substantial risk of injury. (*Ibid.*)

Caltrans further argues that Torrecilla-Flores “does not cite any statutory authority or case law which identifies the legal standards for what constitutes ‘qualified’ or ‘unqualified’ personnel for purposes of inspections or constructive notice under similar facts.” (June 18, 2026 MPA, at p. 12, ll. 4–6.) Importantly, neither does Caltrans, and, before reaching Torrecilla-Flores’s evidence, it is Caltrans that bears the initial burden of establishing that the dangerous condition could not have been detected by reasonably adequate inspection in time to have protected against it. But Caltrans has introduced no evidence of when the condition arose, instead relying on the presumed reasonableness of its inspections — as to which Caltrans does not cite any statutory authority or case law which identifies the legal standards constituting what constitutes due care for purposes of inspections or constructive notice under similar facts.

Therefore, at the very least, there exists a triable issue of material fact as to whether Caltrans had constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. Accordingly, the motion is denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 4**

23-CIV-03393

ERICA ROBINSON VS. DORATRIZ PADILLA, ET AL

ERICA ROBINSON
DORATRIZ PADILLA

NIAL P. MCCARTHY
PETER L. ISOLA

Defense Motion for Summary Judgment and Alternative Motion for Summary Adjudication

TENTATIVE RULING:

Defendants Doratriz Padilla and eXp Realty have moved for summary judgment or, alternatively, summary adjudication of issues against plaintiff Erica Robinson, as Successor-in-Interest to the Estate of Martin J. Lanfranco and as executor of the Martin J. Lanfranco Revocable Trust.

For reasons addressed below, defendants' motion is **DENIED** as to plaintiff's first, second, and third causes of action, and as to plaintiff's demand for punitive damages against defendant Padilla. Defendant's motion is **GRANTED** as to plaintiff's demand for punitive damages against defendant eXp Realty.

The court declines to rule on the objections filed by plaintiff and defendant, as the the evidence subject to those objections is not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

A. Factual Summary

Plaintiff's decedent Martin Lanfranco was an 84-year-old man who, before he died in 2024, had managed his acute bi-polar and schizoaffective disorder with the support of family over many years. (Pltf's Separate Statement of Undisputed Material Facts in Opp. to MSJ [Pltf's SSUMF] and Additional Material Facts [AMF], filed June 11, 2026 Nos. 1, 10-11.) Lanfranco was married to Esperanza Bijasa and had regular contact with Esperanza's daughter Christianne (Chris) Kernes and her husband Shawn. (AMF Nos. 5-7.) Given Lanfranco's mental illness, his family generally assisted with, or at least was looped in on, his real estate decisions. (AMF No. 12.) When Lanfranco first inquired in 2020 about listing his condo at 555 Laurel Avenue (the Laurel Property) for sale, his family understood that his interest in understanding the condo's value was a symptom of his mental illness. (AMF No. 13.) According to his son-in-law Shawn Kernes, when Lanfranco was in a manic episode he would become obsessed with attempting to value his assets, including any real estate he owned. (*Ibid.*) In March 2021, Lanfranco indicated that he intended to move closer to Chris and Shawn, so they lined up showings for him in the El Dorado Hills area. (AMF No. 17.) Lanfranco abruptly changed course and decided he wanted to sell his condo and move to a single-family home in San Mateo. (AMF Nos. 18-20.)